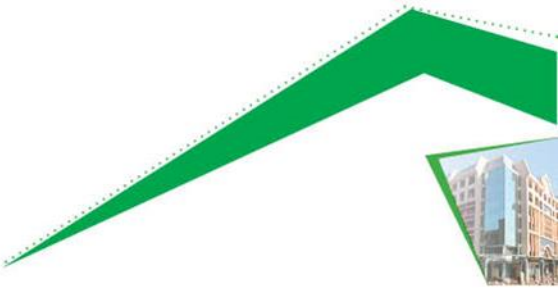
Province of the
EASTERN CAPE
PUBLIC WORKS & INFRASTRUCTURE



PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT

SCMU5-26/27-0007SB

NAME OF COMPANY: _____

CSD Nr: _____

CLOSING DATE: 27 OCTOBER 2026 **TIME: 11:00 am**

Department of Public Works and Infrastructure
Old Ford House Building
55 Albany Road
Central
Gqeberha
6001

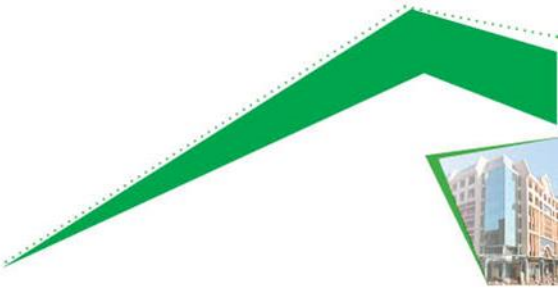
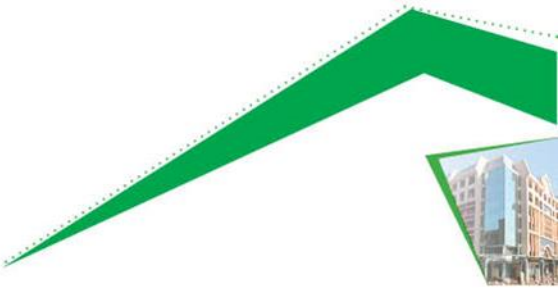


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PART T1: TENDER PROCEDURES

T1.1 Tender Notice and Invitation to Tender

The Eastern Cape Department of Public Works and Infrastructure (ECDPWI) invites Professional Service Providers for **SCMU5-26/27-0007SB: PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT**

The Eastern Cape Department of Public Works and Infrastructure will enter into a contract with the successful tenderer. The contract will be based on the CIDB Professional services contract (Third edition) 2009. Only tenderers who have suitable experience and suitably qualified personnel in providing similar services to those that are required are eligible to submit to tenders.

NB: The preferred tenderer will be required to submit an approved insurer's undertaking to provide Professional Indemnity insurance specific to the project for R3 Million within 21 days of appointment.

NOTE: BIDDERS INTENDING TO RENDER SERVICES TO THE DEPARTMENT OF PUBLIC WORKS AND INFRASTRUCTURE MAY BE SUBJECTED TO SCREENING AND OR VETTING PRIOR TO THE AWARD OF THE TENDER.

Tender documents are downloadable free of charge from National Treasury's e-Tender Portal: (http://www.etenders.gov.za/content/advertised-tenders) or from the Department of Public Works and Infrastructure website (www.ecdpw.gov.za/tenders) from **16 OCTOBER 2026.**

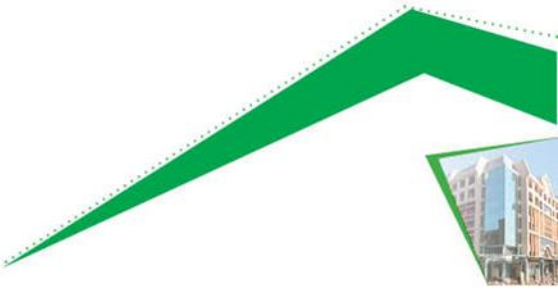
B. TENDER SUBMISSION:

The closing time and date for receipt of tenders by the ECDPWI is **11:00am** on **27 OCTOBER 2026**.
Telegraphic, telephonic, telex, facsimile, e-mail and late tenders will not be accepted.

Bids must be submitted in sealed envelopes clearly marked **"TENDER SCMU5-26/27-0007SB: PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT**" and must be deposited in the bid box, **Ground Floor, Department of Public Works and Infrastructure, Old Ford House Building, Cnr Albany & Westbourne Roads, Gqeberha**

It is the responsibility of the bidder/s to ensure that bid documents /proposals are submitted on or before closing time and at the correct location as the department will not take responsibility of wrong delivery. Bidders using courier services for delivery of their bid documents must ensure the delivery is at the correct place / location and time as the department will not be held responsible for wrong delivery. Bid documents must only be deposited in the bid box and not be handed over to any departmental official. The department will not accept responsibility if bids are handed to department officials and are not timeously deposited in the bid box.
Tenders may only be submitted on the tender documentation that is issued. Tenderers must be registered on the National Treasury Central Supplier Data Base and proof of registration must be submitted with the proposal (https://secure.csd.gov.za).

Requirements for sealing, addressing, delivery, opening and assessment of tenders are stated in the Tender Data.



C. BID EVALUATION:

This bid will be evaluated in Two (2) phases as follows:
Phase One: Compliance, responsiveness to the bid rules and conditions

Phase Two: Preferential Procurement Policy Framework Act (PPPFA), and Preferential Procurement Regulations 2022.

PREFERENTIAL PROCUREMENT POLICY FRAMEWORK ACT PREFERENTIAL POINTS WILL BE AWARDED AS FOLLOWS:

Maximum points on Price	**-** 80 **points**
Maximum points for Specific goal	**- 20 points**
Maximum Points	**- 100 points**

D. BID SPECIFICATION, CONDITIONS AND RULES

1. The minimum specifications, other bid conditions and rules are detailed in the bid document under tender data.
2. The department of Public Works and Infrastructure SCM Policy applies.
3. Tender validity period is **90 days.**

E. ENQUIRIES WITH REGARDS TO THIS TENDER MAY BE DIRECTED TO:

- **SCM RELATED ENQUIRIES**
  Mrs. N, Ntsila
  Tel No. 041 390 9069
  Cell No. 082 855 1778 **(during office hours only)**
  E-mail Address: Nomawethu.Ntsila@ecdpw.gov.za

- **TECHNICAL RELATED ENQUIRIES**
  Mr. K. Manjiya
  Tel No. 041 390 9069
  Cel No.: 069 019 6100 **(during office hours only)**
  Email Address: Khaka.Manjiya@ecdpw.gov.za

FOR COMPLAINTS, FRAUD, & TENDER ABUSE:
Call: 0800 701 701

T1.2 Tender Data

The conditions of tender are the latest edition of SANS 10845-3, *Standard conditions of tender*.
SANS 10845-3 makes several references to the Tender Data for details that apply specifically to this tender.

The Tender Data shall have precedence in the interpretation of any ambiguity or inconsistency between it and the provisions of SANS 10845-3 *and* as contained in **Annexure C** of **Standard for Uniformity in Construction Procurement (Board Notice 423 Government Gazette No 42622 of August 2019)**.

Each item of data given below is cross-referenced to the clause in SANS 10845-3 to which it mainly applies.

Clause number	Tender Data
3.1	The Employer is Department of Public works and Infrastructure – Eastern Cape Province
3.2	The tender documents issued by the employer comprise the following documents: **THE TENDER** **Part T1: Tendering procedures** T1.1 - Tender notice and invitation to tender T1.2 - Tender data **Part T2: Returnable documents** T2.1 - List of returnable documents **THE CONTRACT** **Part C1: Agreements and Contract data** C1.1 - Form of offer and acceptance C1.2 - Contract data **Part C2: Pricing data** C2.1 - Pricing assumptions C2.2 - Pricing schedule **Part C3: Scope of work** C3 - Scope of work **Part C4: Site information** C4 - Site information
3.3	The tender documents issued by the employer comprise the documents listed on the contents page
3.4	The employer's agent is: **Name:** Mr. Khaka Manjiya **Address:** Department of Public Works and Infrastructure Old Ford House Building 55 Albany Road Gqeberha **Company Name:** Department of Public Works and Infrastructure- Sarah Baartman District **Contact Number:** 041 390 9069 / 069 019 6100 **E-mail Add:** Khaka.Manjiya@ecdpw.gov.za
3.5	The language for communications is English
3.6	The competitive negotiation procedure shall be applied.
3.7	Method 2: Two stage procurement procedures shall be applied.
4	**Tender's obligations**
4.1	Only those Tenderers who satisfy the following eligibility criteria and who provide the required evidence in their tender submissions are eligible to submit tenders and have their tenders evaluated: • Tax matters are in order • Directors or company is not in the Treasury's database of restricted suppliers

4.2	The Employer **will not** compensate the Tenderers for any costs incurred in the preparation and submission of a tender offer, including the cost of the tender being registered with SACAP.
4.3	It is the responsibility of the tenderer to check the tender documents on receipt for completeness and notify the employer of any discrepancy or omission.
4.4	**Confidentiality and copyright of documents** Treat as confidential all matters arising in connection with the tender. Use and copy the documents issued by the employer only for the purpose of preparing and submitting a tender offer in response to the invitation.
4.5	Obtain, as necessary for submitting a tender offer, copies of the latest versions of standards, specifications, conditions of contract and other publications, which are incorporated into the tender documents by reference.
4.6	Acknowledge receipt of addenda to the tender documents, which the employer may issue, and, if necessary, apply for an extension to the closing time stated in the tender data, to take the addenda into account.
4.7	**Seek clarification** *Request clarification of the tender documents, if necessary, by notifying the employer of at least* ***three (3)*** **working days** ***before the closing time stated in the tender data.***
4.8	Tenderers are required to indicate the rates and currencies in RSA Rand.
4.8(a)	If after the commencement of the Contract, the cost or duration of the services is altered as a result of changes in, the amount of the main contractor or contract amount from which fee account/estimate were based, or amounts or additions to, any statute, regulation or by-laws, or the requirements of any authority having jurisdiction over any matter in respect of the Project, then the Contract Price and time for completion shall be adjusted in order to reflect the impact of those changes, provided that, within 90 days of first having become aware of the change, the Service Provider furnished the Employer with detailed justification to the Price or Period of the Performance (or both).
4.9	Do not make any alterations or additions to the tender documents, except to comply with instructions issued by the employer or to correct errors made by the tenderer and ensure that all signatories to the tender offer initial all such alterations. Do not make erasures using masking fluid.
4.10	Main tender offers are not required to be submitted together with alternative tenders.
4.11	No alternative tender offers will be considered
4.12.1	Parts of each tender offer communicated on paper shall be submitted as original. Submit: a) The parts of the tender offer communicated on paper as an original plus the number of copies stated in the tender data, with a translation of any documentation in a language other than the language of communication established in 3.5, and b) The parts communicated electronically by the employer of its agents on paper format with the tender.
4.12.2	Sign the original and all copies of the tender offer where required in terms of the tender data. **NOTE** The employer holds all authorized signatories liable on behalf of the tenderer.
4.12.3	The Employer's details and address for delivery of tender offers and identification details that are to be shown on each tender offer package are: **Location of Tender Box** **Physical address: DEPARTMENT OF PUBLIC WORKS, GROUND FLOOR, OLD FORD HOUSE BUILDING, Cnr ALBANY & WESTBOURNE ROADS, GQEBERHA, 6001** **Identification details: TENDER SCMU5-26/27-0007SB: PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT** **CLOSING DATE: 27 October 2026** **TIME: 11:00AM**
4.12.4	The tenderer is required to submit with his tender the following certificates: 1) A copy of the CSD report showing, amongst other things, that tax matters of the service provider are in order in the South African Revenue Services.

4.12.5	A two-envelope procedure will not be required.
4.12.6	Telephonic, telegraphic, telex, facsimile or e-mailed tender offers will not be accepted. The tenderer accepts that the employer does not assume any responsibility for the misplacement or premature opening of the tender offer if the outer package is not sealed and marked as stated.
4.13	The closing time for submission of tender offers is as stated in the Tender Notice and Invitation to Tender. Ensure that the employer receives the tender offer at the address specified in the tender data not later than the closing time stated in the tender data. Proof of posting shall not be accepted as proof of delivery. Accept that, if the employer extends the closing time stated in the tender data for any reason, the requirements of the standard conditions of tender in this part of SANS 10845 apply equally to the extended deadline.
4.14.1	The tender offer validity period is **90 days**. Hold the tender offer(s) valid for acceptance by the employer at any time during the validity period stated in the tender data after the closing time stated in the tender data. If requested by the employer, consider extending the validity period stated in the tender data for an agreed additional period, with or without any conditions attached to such extension. Extend the period of the tender security, if any, to cover any agreed extension requested by the employer.
4.14.2	**Placing of contractors under restrictions / withdrawal of tenders** If any tenderer who has submitted a tender offer has, as relevant: withdrawn such tender or quotation after the advertised closing date and time for the receipt of submissions; after having been notified of the acceptance of his tender, failed or refused to commence the contract; had their contract terminated for reasons within their control without reasonable cause; offered, promised or given a bribe in relation to the obtaining or the execution of such contract; acted in a fraudulent, collusive or anti-competitive or improper manner or in bad faith towards the Provincial Government; or, made any incorrect statement in any affidavit or declaration with regard to a preference claimed and is unable to prove to the satisfaction of the Provincial Government that the statement was made in good faith or reasonable steps were taken to confirm the correctness of the statements, such tenderer/s may be placed under restriction from tendering with the state. Procedures are outlined in the SCM Policy for Infrastructure procurement and Delivery Management and on **CIDB** Practice Note #30. Excerpts of the policy can be availed on request of any interested tenderer.
4.15	The preferred tenderer will be required to submit an approved insurer undertaking to provide Professional Indemnity insurance specific to the project for R3 Million within 21 days of appointment.
5	**Employer's undertakings**
5.1	The Employer will respond to requests for clarification received up to **Three (3) working days** before the tender closing time. If, as a result of the issuing of addenda, it is necessary to extend the closing time stated in the tender data, grant such extension and notify all respondents accordingly.
5.2	The employer shall issue addenda until **Three (3) working days** before tender closing time.
5.3	Tenders will be opened immediately after the closing time for tenders at **11:00am hours.**
5.4	Do not disclose to tenderers, or to any person not officially concerned with such processes, information relating to the evaluation and comparison of tender offers, the final evaluation price and recommendations for the award of a contract, until after the award of the contract to the successful tenderer.
5.5	Determine, after opening and before detailed evaluation, whether each tender offer that was properly received: a) complies with the requirements of the standard conditions of tender in this part of SANS 10845, b) has been properly and fully completed and signed, and c) is responsive to the other requirements of the tender documents. A responsive tender is one that conforms to all the terms, conditions, and scope of work of the tender documents, without material deviation or qualification. A material deviation or qualification is one which, in the employer's opinion, would d) detrimentally affect the scope, quality, or performance of the works, services or supply identified in the scope of work, e) significantly change the employer's or the tenderer's risks and responsibilities under the contract, or f) affect the competitive position of other tenderers presenting responsive tenders, if it were to be rectified. Reject a non-responsive tender offer, and do not allow it to be subsequently made responsive by correction or withdrawal of the non-conforming deviation or reservation.
5.6	**Arithmetical errors, omission and discrepancies**

<table>
<tr><td></td><td>Check responsive tenders for discrepancies between amounts in words and amounts in figures. Where there is a discrepancy between the amounts in figures and the amount in words, the amount in words shall govern.

For Vat related discrepancies, National and Provincial Treasury prescripts in relation to VAT procedures apply.</td></tr>
<tr><td>5.7.1</td><td>The financial offer will be reduced to a comparative basis using the Tender Assessment Schedule.
Table F.1: Formulae for calculating the value of A
<table>
<tr><th>Formula</th><th>Comparison aimed at achieving</th><th>Option 1[a]</th><th>Option 2[a]</th></tr>
<tr><td>1</td><td>Highest price or discount</td><td>$A = \left(1 + \frac{(P - P_m)}{P_m}\right)$</td><td>$A = P/P_m$</td></tr>
<tr><td>2</td><td>Lowest price or percentage commission / fee</td><td>$A = \left(1 - \frac{(P - P_m)}{P_m}\right)$</td><td>$A = P_m/P$</td></tr>
<tr><td>a</td><td colspan="3">P_m is the comparative offer of the most favourable comparative offer.
P is the comparative offer of the tender offer under consideration.</td></tr>
</table></td></tr>
<tr><td>5.7.2</td><td>The procedure for the evaluation of responsive tenders is Method 2: Administrative Compliance, Price and Preference. In the case of a price and preference:

2 <u>STAGE ONE: RESPONSIVENESS TO THE BID REQUIREMENTS AND RULES</u>

Bidders' proposals must meet the following minimum requirements and supporting documents must be submitted with the completed bid document in a sealed envelope in the bid box at the closing date and time. Failure to comply will automatically eliminate the bid for further consideration:
2.1 Bid Document (This Document must be submitted in its original format)
2.2 Bids which are late, incomplete, unsigned or submitted by facsimile or electronically, will not be accepted.
2.3 Bidders must be a legal entity or partnership or consortia.
2.4 Form of offer and Acceptance (fully completed and signed)
2.5 SBD 4- Bidder's disclosure (fully completed and signed)- SBD4 must be duly completed and signed. Does the bidder or any of its directors / trustees / shareholders / members / partners or any person having a controlling interest in the enterprise have any interest in any other related enterprise whether or not they are bidding for this contract, such interest must be disclosed on question 2.3.1.
2.6 Incomplete or unsigned or poorly completed forms SBD 4 will lead to a bidder being declared non-responsive.
2.7 Compulsory Enterprise Questionnaire (fully Completed and signed).
2.8 If the offer is "Vat Inclusive", the VAT registration number of service provider must be indicated and if a service provider is not a VAT Vendor but include VAT in its prices, the successful service provider will be given 21 days to register as a VAT Vendor with SARS, after the issuing of an appointment letter. If a bidder is a VAT vendor/registered, the bidder is required to explicitly state the VAT amount. VAT vendors must include VAT at 15% in the bid offer(s).
2.9 If the Bid Sum (amount in words) differ from the Bid Sum (amount in figures), the Bid Sum (amount in words) will govern.
2.10 Resolution of Signatory (must be completed or attached if applicable).
2.11 Declaration of Employees of the State or other State Institutions.
2.12 Only one offer per item per bidder is allowed and alternative offers will not be considered. If more than one offer per item is received, none of the offers will be considered.
2.13 Bidders are hereby informed that the department has or issuing the number of tenderers targeting the same PSP service providers. The department reserves the right not to award more than two bid in the case where one bidder has scored the highest points in other projects.

Other Conditions of bid-non eliminating

2.14 The bidder must be registered on the Central Supplier Database (CSD) prior the award.
2.15 All bidders' tax matters must be in order prior award. Bidders' tax matters will be verified through CSD, in cases where bidder's status found non-compliant the bidder will be granted 7 days. A bidder that fails to rectify its tax matters with SARS will be declared non-responsive.
2.16 The Department will contract with the successful bidder by signing a formal contract.</td></tr>
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<td></td>
<td>
2.17 All items listed in the Pricing schedule must be priced for (except provisional sums and allowances which must also be added to the total), failure to do so will increase commercial risk of the bid and may lead to elimination or passing over of the bidder.
2.18 The bidder has duly completed and signed the SBD 1, and SBD 6.1.
2.19 Bidders need to complete and sign SBD 6.1 to claim points for specific goals. Failure to complete will lead in non-awarding of points for specific goals.
2.20 The bidder must also list all projects where there are pending litigations or litigations have been concluded. The form for this is also attached after Annexure H.
2.21 Bidders intending to render services to the Department of Public Works and Infrastructure may be subjected to screening and or vetting prior to the award of the tender
2.22 Bidders must submit a minimum of three (3) written contactable references for where they were performing duties as a Professional Architect, Senior Architectural Technologist or Architectural Technologist work or similar nature successfully completed (clearly indicating client name, contract value, contract term, contact person, contact details).
2.23 DPWI SCM Policy applies.
2.24 Protection of personal information: Consent (POPIA)

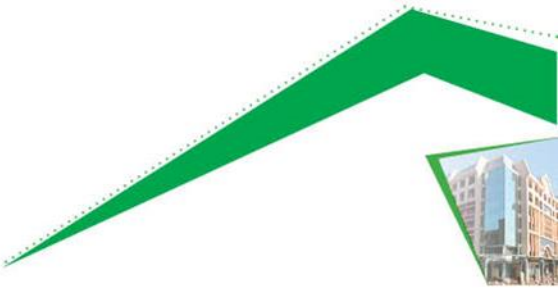
3 <u>STAGE TWO: EVALUATION POINTS ON PRICE AND SPECIFIC GOALS</u>

The 80/20 preference point system shall be applied for the purposes of this bid as per the requirements of the Preferential Procurement Policy Framework Act, 2000 (Act No. 5 of 2000) and Specific goals/ Preferential Procurement Regulations 2022
<table>
<tr><th>Criteria</th><th>Points</th></tr>
<tr><td>POINTS ON PRICE</td><td>80</td></tr>
<tr><td>SPECIFIC GOALS</td><td>20</td></tr>
<tr><td>TOTAL</td><td>100</td></tr>
</table>
Please note:
1. Bidders need to complete and sign SBD 6.1 to claim points for specific goals. Failure will lead in non-awarding of points for specific goals
2. The Department intends to award this to the highest point scorer as whole, unless circumstances justify otherwise
3. All information will be verified through CSD
4. SBD 6.1 is attached

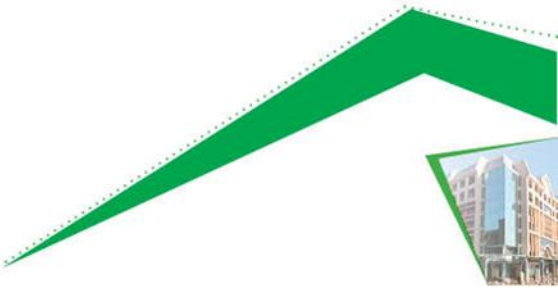
The 80/20 preference point system for acquisition of services, works or goods up to Rand value of R50 million:
(a) The following formula must be used to calculate the points for price in respect of tenders (including price quotation) with a Rand value equal to, or above R 30 000 and up to Rand value of R 50 000 000 (all applicable taxes included):
</td>
</tr>
<tr>
<td>5.8</td>
<td>
Tender offers will only be accepted if:
a) the tenderer is registered on the Central Supplier Database (CSD) for the South African government (see https://secure.csd.gov.za/) unless it is a foreign supplier with no local registered entity
b) The tenderer is in good standing with SARS according to the Central Supplier Database. Bidders must submit a CSD no. or tax status compliance pin.
c) The preferred tenderer will be required to submit an approved insurer undertaking to provide the Professional Indemnity Insurance/ Security specific for the project within 21 days of appointment.
d) the tenderer or any of its directors/shareholders is not listed on the Register of Tender Defaulters in terms of the Prevention and Combating of Corrupt Activities Act of 2004 as a person prohibited from doing business with the public sector;
e) the tenderer has not:
i) abused the Employer's Supply Chain Management System; or
ii) failed to perform on any previous contract and has been given written notice to this effect;
f) the tenderer has completed the Compulsory Declaration and there are no conflicts of interest which may impact on the tenderer's ability to perform the contract in the best interests of the employer or potentially compromise the tender process;
</td>
</tr>
</table>

	g) the tenderer has completed the Compulsory Enterprise Questionnaire and there are no conflicts of interest which may impact on the tenderer's ability to perform the contract in the best interests of the employer or potentially compromise the tender process and persons in the employ of the state are permitted to submit tenders or participate in the contract. h) The tenderer is registered and in good standing with the compensation fund or with a licensed compensation insurer. i) The tender has offered a market-related offer. If the offer is believed not to be market related, the department, through its Supply Chain Management bid committees, will attempt to negotiate the offer with identified bidder/s to a reasonable amount. Bidders are not allowed to increase their tender offers during this process. j) If applicable, a Resolution of signatory form has been completed and signed by director/s or a letter bearing a letterhead of the tenderer has been attached (specific to this bid) to the bid submission; it must be duly signed by all directors and submitted the bid. Only a duly authorized official can sign the bid. k) **NOTE:** The amount reflected on the Form of Offer and Acceptance takes precedence over any other total amount indicated elsewhere in bidder's tender submission. If the Form of Offer and Acceptance have no value or figure, the bidder will be regarded as having made no offer. l) The department reserves the right not to award the bid to the most favorable tenderer, if any of the situations occur: if it is not assisting in the advancement of designated groups; risk profile of the favorable firm is too high; the bidder has been awarded a considerable number of projects by the department; has performed unsatisfactorily in the past.
5.9	The number of paper copies of the signed contract to be provided by the employer is One (1).
	The additional conditions of tender are: • …… • ……..
T.2.1	***A. List of returnable documents***
1	**Documentation to demonstrate eligibility to have tenders evaluated, I.e.** *List all documentation to demonstrate eligibility to have a submission evaluated.* • Appropriate Professional Registration category suitable for the works (as stated in 4.1).
2	**Returnable Schedules required for tender evaluation purposes** The tenderer must fully and appropriately complete and sign the following returnable schedules as relevant: • Record of Addenda to Tender Documents (if applicable) • Compulsory Enterprise Questionnaire • SBD 1, SBD 4 & SBD 6.1 • Form of Offer and Acceptance • Attach a list of past projects (stating the name, amount, client name, project manager, duration, completion date) – reachable references. • Completed Pricing Schedule
3	**Other documents required for tender evaluation purposes** The tenderer must provide the following returnable documents: • A CSD Report of a consultant with valid and correct information.
4	**Returnable Schedules that will be used for tender evaluation purposes and be incorporated into the contract** The tenderer must complete the following returnable documents: • A duly completed form of Offer and Acceptance (and any revision of prices if there are any).
5	**Only authorized signatories may sign the original and all copies of the tender offer where required**. • In the case of a ONE-PERSON CONCERN submitting a tender, this shall be clearly stated. • In the case of a **COMPANY** submitting a tender, include a copy of a **resolution by its board of directors** authorizing a director or other official of the company to sign the documents on behalf of the company.

	• In the case of a **CLOSE CORPORATION** submitting a tender, include a copy of a **resolution by its members** authorizing a member or other official of the corporation to sign the documents on each member's behalf. • In the case of a **PARTNERSHIP** submitting a tender, **all the partners** shall sign the documents, unless one partner or a group of partners has been authorized to sign on behalf of each partner, in which case **proof of such authorization** shall be included in the Tender. **Accept that failure to submit proof of authorization to sign the tender shall result in the tender offer being regarded as non-responsive.**
6	**Information and data to be completed in all respects** Accept that tender offers, which do not provide all the data or information requested completely and, in the form required, may be regarded by the employer as non-responsive.
7	**Canvassing and obtaining additional information by tenderers** The Tenderer shall not make any attempt either directly or indirectly to canvass any of the Employer's officials or the Employer's agent in respect of his tender, after the opening of the tenders but prior to the Employer arriving at a decision thereon. The Tenderer shall not make any attempt to obtain particulars of any relevant information, other than that disclosed at the opening of tenders.
8	**Prohibitions on awards to people in service of the state** The Employer is prohibited to award a tender to a person - a) who is in the service of the state; or b) if that person is not a natural person, of which any director, manager, principal shareholder or stakeholder is a person in the service of the state; or c) a person who is an advisor or consultant contracted with the Department or municipal entity. **In the service of the state** means to be - a) a member of: *a* any municipal council; *b* any provincial legislature; or *c* the National Assembly or the National Council of Provinces; d) a member of the board of directors of any municipal entity; e) an official of any Department or municipal entity; f) an employee of any national or provincial department; g) provincial public entity or constitution within the meaning of the Public Finance Management Act, 1999 (Act No.1 of 1999); h) a member of the accounting authority of any national or provincial public entity; or i) an employee of Parliament or provincial legislature. In order to give effect to the above, the questionnaire for the declaration of interest in the tender of persons in service of state in part T2 of this procurement document must be completed.
9	**Awards to close family members of persons in the service of the state** Accept that the notes to the Employer's annual financial statements must disclose particulars of any award of more than R2000 to a person who is a spouse, child or parent of a person in the service of the state (defined in clause 8 above), or has been in the service of the state in the previous twelve months, including - a) the name of that person; *b)* the capacity in which that person is in the service of the state; and *c)* the amount of the award.



	To give effect to the above, the questionnaire for the declaration of interest in the tender of people in service of state in part T2 of this procurement document must be completed.
10	**Respond to requests from the tenderer** The employer will respond to requests for clarification up to Three **(3) working days** before the tender closing time.
11	**Opening of tender submissions** Tenders will be opened immediately after the closing time for tenders.
12	**Scoring quality / functionality** **N/A**
13	**Cancellation and re-invitation of tenders** An organ of state may, prior to the award of the tender, cancel the tender if- (a) due to changed circumstances, there is no longer a need for the services, work or goods requested; or (b) funds are no longer available to cover the total envisaged expenditure; or (c) No acceptable tenders are received. (d) Tender validity period has expired. (e) Gross irregularities in the tender processes or documents. (f) No market-related offer received (after attempts of negotiation processes) Where applicable, the decision to cancel the tender will be published in the Tender Bulletin or the media in which the original tender invitation was advertised.
14	Where the employer terminates the contract due to default of the professional service in whole or in part, the employer may decide to: Refer the breach in contract to the **CIDB Professional Services Contract** and to **CBE** for investigation.



PART T2 RETURN ABLE DOCUMENTS

T2.1 List of Returnable Documents

The tenderer must complete the following returnable documents:

1 Returnable **Schedules required for evaluation purposes**

- Compulsory enterprise questionnaire
- Record of addenda issued (Only if addenda are issued)

2 Other **documents required for quotation evaluation purposes**

- Form of Offer and Acceptance
- Final Summary (Bills of Quantities/Pricing Schedule)

3 **Returnable Schedules that will be incorporated into the contract**

- Details of the Project Team and CV with Qualifications & Proof of Registration completed for every one of the proposed team. Registration will be verified through SACAP
- Record of projects: current, past and on tender.
- Project References – at least 3 for each of the Architectural disciplines
- SBD 1, SBD 4 & SBD 6.1

PART A- INVITATION TO BID

YOU ARE HEREBY INVITED TO BID FOR REQUIREMENTS OF THE DEPARTMENT OF PUBLIC WORKS AND INFRASTRUCTURE					
BID NUMBER:	**SCMU5-26/27-0007SB**	CLOSING DATE:	**27 OCTOBER 2026**	CLOSING TIME:	11:00
DESCRIPTION	**PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT**				
BID RESPONSE DOCUMENTS MAY BE DEPOSITED IN THE BID BOX SITUATED AT *(STREET ADDRESS)*					
GROUND FLOOR, DEPARTMENT OF PUBLIC WORKS AND INFRASTRUCTURE, OLD FORD HOUSE BUILDING, CNR ALBANY & WESTBOURNE ROADS, GQEBERHA					

BIDDING PROCEDURE ENQUIRIES MAY BE DIRECTED TO		**TECHNICAL ENQUIRIES MAY BE DIRECTED TO:**	
CONTACT PERSON	**Ms. N. Ntsila**	CONTACT PERSON	**Mr. Khaka Manjiya**
TELEPHONE NUMBER	**041 390 9069 / 082 855 1778**	TELEPHONE NUMBER	**041 391 9169 / 069 019 6100**
E-MAIL ADDRESS	Nomawethu.ntsila@ecdpw.gov.za	E-MAIL ADDRESS	Khaka.Manjiya@ecdpw.gov.za

SUPPLIER INFORMATION					
NAME OF BIDDER					
POSTAL ADDRESS					
STREET ADDRESS					
TELEPHONE NUMBER	CODE		NUMBER		
CELLPHONE NUMBER					
FACSIMILE NUMBER	CODE		NUMBER		
E-MAIL ADDRESS					
VAT REGISTRATION NUMBER					
SUPPLIER COMPLIANCE STATUS	TAX COMPLIANCE SYSTEM PIN:		**OR**	CENTRAL SUPPLIER DATABASE No:	MAAA
~~B-BBEE STATUS LEVEL VERIFICATION CERTIFICATE~~	~~TICK APPLICABLE BOX]~~ ☐ Yes ☐ No		~~B-BBEE STATUS LEVEL SWORN AFFIDAVIT~~	~~[TICK APPLICABLE BOX]~~ ☐ Yes ☐ No	

[A B-BBEE STATUS LEVEL VERIFICATION CERTIFICATE/ SWORN AFFIDAVIT (FOR EMES & QSEs) MUST BE SUBMITTED IN ORDER TO QUALIFY FOR PREFERENCE POINTS FOR B-BBEE]

a) ARE YOU THE ACCREDITED REPRESENTATIVE IN SOUTH AFRICA FOR THE GOODS /SERVICES /WORKS OFFERED?	☐Yes ☐No [IF YES ENCLOSE PROOF]	**b)** ARE YOU A FOREIGN BASED SUPPLIER FOR **THE GOODS /SERVICES /WORKS OFFERED?**	☐Yes ☐No [IF YES, QUESTIONNAIRE BELOW]

QUESTIONNAIRE TO BIDDING FOREIGN SUPPLIERS

IS THE ENTITY A RESIDENT OF THE REPUBLIC OF SOUTH AFRICA (RSA)?	☐ YES ☐ NO
DOES THE ENTITY HAVE A BRANCH IN THE RSA?	☐ YES ☐ NO
DOES THE ENTITY HAVE A PERMANENT ESTABLISHMENT IN THE RSA?	☐ YES ☐ NO
DOES THE ENTITY HAVE ANY SOURCE OF INCOME IN THE RSA?	☐ YES ☐ NO
IS THE ENTITY LIABLE IN THE RSA FOR ANY FORM OF TAXATION?	☐ YES ☐ NO

IF THE ANSWER IS "NO" TO ALL OF THE ABOVE, THEN IT IS NOT A REQUIREMENT TO REGISTER FOR A TAX COMPLIANCE STATUS SYSTEM PIN CODE FROM THE SOUTH AFRICAN REVENUE SERVICE (SARS) AND IF NOT REGISTER AS PER 2.3 BELOW.

PART B - TERMS AND CONDITIONS FOR BIDDING

1.	**BID SUBMISSION:**
1.1.	BIDS MUST BE DELIVERED BY THE STIPULATED TIME TO THE CORRECT ADDRESS. LATE BIDS WILL NOT BE ACCEPTED FOR CONSIDERATION.
1.2.	**ALL BIDS MUST BE SUBMITTED ON THE OFFICIAL FORMS PROVIDED– (NOT TO BE RE-TYPED) OR IN THE MANNER PRESCRIBED IN THE BID DOCUMENT.**
1.3.	THIS BID IS SUBJECT TO THE PREFERENTIAL PROCUREMENT POLICY FRAMEWORK ACT, 2000 AND THE PREFERENTIAL PROCUREMENT REGULATIONS, 2022, THE GENERAL CONDITIONS OF CONTRACT (GCC) AND, IF APPLICABLE, ANY OTHER SPECIAL CONDITIONS OF CONTRACT.
1.4.	**THE SUCCESSFUL BIDDER WILL BE REQUIRED TO FILL IN AND SIGN A WRITTEN CONTRACT FORM (SBD7).**
2.	**TAX COMPLIANCE REQUIREMENTS**
2.1	BIDDERS MUST ENSURE COMPLIANCE WITH THEIR TAX OBLIGATIONS.
2.2	BIDDERS ARE REQUIRED TO SUBMIT THEIR UNIQUE PERSONAL IDENTIFICATION NUMBER (PIN) ISSUED BY SARS TO ENABLE THE ORGAN OF STATE TO VERIFY THE TAXPAYER'S PROFILE AND TAX STATUS.
2.3	APPLICATION FOR TAX COMPLIANCE STATUS (TCS) PIN MAY BE MADE VIA E-FILING THROUGH THE SARS WEBSITE WWW.SARS.GOV.ZA.
2.4	BIDDERS MAY ALSO SUBMIT A PRINTED TCS CERTIFICATE TOGETHER WITH THE BID.
2.5	IN BIDS WHERE CONSORTIA / JOINT VENTURES / SUB-CONTRACTORS ARE INVOLVED, EACH PARTY MUST SUBMIT A SEPARATE TCS CERTIFICATE / PIN / CSD NUMBER.
2.6	WHERE NO TCS IS AVAILABLE BUT THE BIDDER IS REGISTERED ON THE CENTRAL SUPPLIER DATABASE (CSD), A CSD NUMBER MUST BE PROVIDED.
2.7	NO BIDS WILL BE CONSIDERED FROM PERSONS IN THE SERVICE OF THE STATE, COMPANIES WITH DIRECTORS WHO ARE PERSONS IN THE SERVICE OF THE STATE, OR CLOSE CORPORATIONS WITH MEMBERS PERSONS IN THE SERVICE OF THE STATE."

NB: FAILURE TO PROVIDE / OR COMPLY WITH ANY OF THE ABOVE PARTICULARS MAY RENDER THE BID INVALID.

SIGNATURE OF BIDDER: ……

CAPACITY UNDER WHICH THIS BID IS SIGNED: ……
(Proof of authority must be submitted e.g. company resolution)

DATE: ……..

Compulsory Enterprise Questionnaire

A

Compulsory Enterprise questionnaire

The following particulars must be furnished. In the case of a joint venture, separate enterprise questionnaires in respect of each partner must be completed and submitted.

Section 1: Name of enterprise: . . . .

Section 2: VAT registration number, if any: . . . . . .

Section 3: CIDB registration number, if any: . . . .

Section 4: Particulars of sole proprietors and partners in partnerships

Name*	Identity number*	Personal income tax number*

** Complete only if sole proprietor or partnership and attach separate page if more than 3 partners*

Section 5: Particulars of companies and close corporations

Company registration number . . . . . .

Close corporation number . . . . . .

Tax reference number . . . . . .

Section 6: The attached SBD 4 must be completed for each tender and be attached as a tender requirement.

Section 7: The attached SBD 6.1 must be completed for each tender and be attached as a requirement.

The undersigned, who warrants that he / she is duly authorized to do so on behalf of the enterprise:

i) authorizes the Employer to obtain a tax clearance certificate from the South African Revenue Services that my / our tax matters are in order;

ii) confirms that the neither the name of the enterprise or the name of any partner, manager, director or other person, who wholly or partly exercises, or may exercise, control over the enterprise appears on the Register of Tender Defaulters established in terms of the Prevention and Combating of Corrupt Activities

Act of 2004; iii) confirms that no partner, member, director or other person, who wholly or partly exercises, or may exercise, control over the enterprise appears, has within the last five years been convicted of fraud or corruption;

iv) confirms that I / we are not associated, linked or involved with any other tendering entities submitting tender offers and have no other relationship with any of the tenderers or those responsible for compiling the scope of work that could cause or be interpreted as a conflict of interest; and

iv) confirms that the contents of this questionnaire are within my personal knowledge and are to the best of my belief both true and correct.

Signed ..... Date .....

Name ..... Position .....

SBD 4

BIDDER'S DISCLOSURE

1. PURPOSE OF THE FORM

Any person (natural or juristic) may make an offer or offers in terms of this invitation to bid. In line with the principles of transparency, accountability, impartiality, and ethics as enshrined in the Constitution of the Republic of South Africa and further expressed in various pieces of legislation, it is required for the bidder to make this declaration in respect of the details required hereunder.

Where a person/s are listed in the Register for Tender Defaulters and / or the List of Restricted Suppliers, that person will automatically be disqualified from the bid process.

2. Bidder's declaration

2.1 Is the bidder, or any of its directors / trustees / shareholders / members / partners or any person having a controlling interest1 in the enterprise,
employed by the state? **YES/NO**

2.1.1 If so, furnish particulars of the names, individual identity numbers, and, if applicable, state employee numbers of sole proprietor/ directors / trustees / shareholders / members/ partners or any person having a controlling interest in the enterprise, in table below.

Full Name	Identity Number	Name of State institution

2.2 Do you, or any person connected with the bidder, have a relationship with any person who is employed by the procuring institution? **YES/NO**

2.2.1 If so, furnish particulars:

……
……

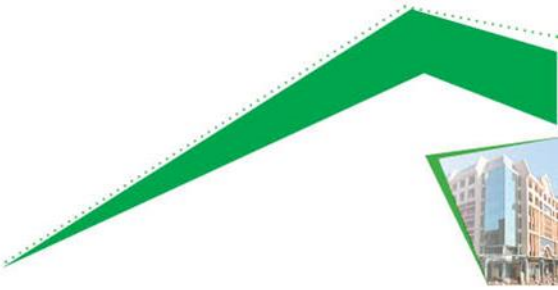
2.3 Does the bidder or any of its directors / trustees / shareholders / members / partners or any person having a controlling interest in the enterprise have any interest in any other related enterprise whether they are bidding for this contract?

YES/NO

2.3.1 If so, furnish particulars:

……
……

[1] the power, by one person or a group of persons holding the majority of the equity of an enterprise, alternatively, the person/s having the deciding vote or power to influence or to direct the course and decisions of the enterprise.



3 DECLARATION

I, undersigned, (name) …… in submitting the accompanying bid, do hereby make the following statements that I certify to be true and complete in every respect:

3.1 I have read and I understand the contents of this disclosure;

3.2 I understand that the accompanying bid will be disqualified if this disclosure is found not to be true and complete in every respect;

3.3 The bidder has arrived at the accompanying bid independently from, and without consultation, communication, agreement or arrangement with any competitor. However, communication between partners in a joint venture or consortium2 will not be construed as collusive bidding.

3.4 In addition, there have been no consultations, communications, agreements or arrangements with any competitor regarding the quality, quantity, specifications, prices, including methods, factors or formulas used to calculate prices, market allocation, the intention or decision to submit or not to submit the bid, bidding with the intention not to win the bid and conditions or delivery particulars of the products or services to which this bid invitation relates.

3.5 The terms of the accompanying bid have not been, and will not be, disclosed by the bidder, directly or indirectly, to any competitor, prior to the date and time of the official bid opening or of the awarding of the contract. There have been no consultations, communications, agreements or arrangements made by the bidder with any official of the procuring institution in relation to this procurement process prior to and during the bidding process except to provide clarification on the bid submitted where so required by the institution; and the bidder was not involved in the drafting of the specifications or terms of reference for this bid.

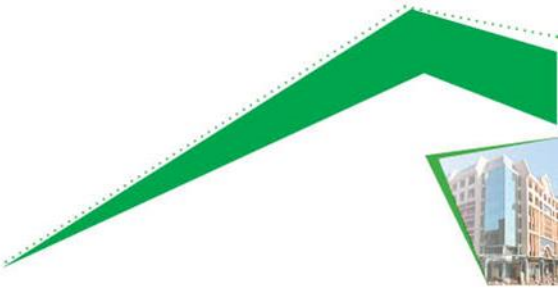
3.6 I am aware that, in addition and without prejudice to any other remedy provided to combat any restrictive practices related to bids and contracts, bids that are suspicious will be reported to the Competition Commission for investigation and possible imposition of administrative penalties in terms of section 59 of the Competition Act No 89 of 1998 and or may be reported to the National Prosecuting Authority (NPA) for criminal investigation and or may be restricted from conducting business with the public sector for a period not exceeding ten (10) years in terms of the Prevention and Combating of Corrupt Activities Act No 12 of 2004 or any other applicable legislation.

I CERTIFY THAT THE INFORMATION FURNISHED IN PARAGRAPHS 1, 2 and 3 ABOVE IS CORRECT.
I ACCEPT THAT THE STATE MAY REJECT THE BID OR ACT AGAINST ME IN TERMS OF PARAGRAPH 6 OF PFMA SCM INSTRUCTION 03 OF 2021/22 ON PREVENTING AND COMBATING ABUSE IN THE SUPPLY CHAIN MANAGEMENT SYSTEM SHOULD THIS DECLARATION PROVE TO BE FALSE.

…… ……
Signature Date

…… ……
Position Name of bidder

[2] Joint venture or Consortium means an association of persons for the purpose of combining their expertise, property, capital, efforts, skill and knowledge in an activity for the execution of a contract.



SBD 6.1

PREFERENCE POINTS CLAIM FORM IN TERMS OF THE PREFERENTIAL PROCUREMENT REGULATIONS 2022

This preference form must form part of all tenders invited. It contains general information and serves as a claim form for preference points for specific goals.

NB: BEFORE COMPLETING THIS FORM, TENDERERS MUST STUDY THE GENERAL CONDITIONS, DEFINITIONS AND DIRECTIVES APPLICABLE IN RESPECT OF THE TENDER AND PREFERENTIAL PROCUREMENT REGULATIONS, 2022

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1. GENERAL CONDITIONS

1.1 The following preference point systems are applicable to invitations to tender:

- the 80/20 system for requirements with a Rand value of up to R50 000 000 (all applicable taxes included); and
- the 90/10 system for requirements with a Rand value above R50 000 000 (all applicable taxes included).

1.2 To be completed by the organ of state

a) The applicable preference point system for this tender is the 80/20 preference point system.

b) The lowest acceptable tender will be used to determine the accurate system once tenders are received.

1.3 Points for this tender (even in the case of a tender for income-generating contracts) shall be awarded for:

(a) Price; and

(b) Specific Goals.

1.4 To be completed by the organ of state:

The maximum points for this tender are allocated as follows:

	POINTS
PRICE	80
SPECIFIC GOALS	20
Total points for Price and SPECIFIC GOALS	**100**

1.5 Failure on the part of a tenderer to submit proof or documentation required in terms of this tender to claim points for specific goals with the tender, will be interpreted to mean that preference points for specific goals are not claimed.

1.6 The organ of state reserves the right to require of a tenderer, either before a tender is adjudicated or at any time subsequently, to substantiate any claim in regard to preferences, in any manner required by the organ of state.

2. DEFINITIONS

(a) **"tender"** means a written offer in the form determined by an organ of state in response to an invitation to provide goods or services through price quotations, competitive tendering process or any other method envisaged in legislation;

(b) **"price"** means an amount of money tendered for goods or services, and includes all applicable taxes less all unconditional discounts;

(c) **"Rand value"** means the total estimated value of a contract in Rand, calculated at the time of bid invitation, and includes all applicable taxes;

(d) **"tender for income-generating contracts"** means a written offer in the form determined by an organ of state in response to an invitation for the origination of income-generating contracts through any method envisaged in legislation that will result in a legal agreement between the organ of state and a third party that produces revenue for the organ of state, and includes, but is not limited to, leasing and disposal of assets and concession contracts, excluding direct sales and disposal of assets through public auctions; and

(e) **"The Act"** means the Preferential Procurement Policy Framework Act, 2000 (Act No. 5 of 2000).

3. FORMULAE FOR PROCUREMENT OF GOODS AND SERVICES

3.1. POINTS AWARDED FOR PRICE

3.1.1 THE 80/20 OR 90/10 PREFERENCE POINT SYSTEMS

A maximum of 80 or 90 points is allocated for price on the following basis:

80/20 **or** **90/10**

$$Ps = 80\left(1 - \frac{Pt - P\,min}{P\,min}\right) \text{ or } \quad Ps = 90\left(1 - \frac{Pt - P\,min}{P\,min}\right)$$

Where

Ps	=	Points scored for price of tender under consideration
Pt	=	Price of tender under consideration
Pmin	=	Price of lowest acceptable tender

3.2. FORMULAE FOR DISPOSAL OR LEASING OF STATE ASSETS AND INCOME GENERATING PROCUREMENT

3.2.1. POINTS AWARDED FOR PRICE

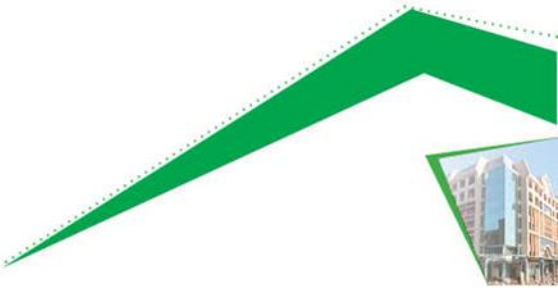
A maximum of 80 or 90 points is allocated for price on the following basis:

80/20 **or** **90/10**

$$Ps = 80\left(1 + \frac{Pt - P\,max}{P\,max}\right) \text{ or } \quad Ps = 90\left(1 + \frac{Pt - P\,max}{Pmax}\right)$$

Where

Ps	=	Points scored for price of tender under consideration
Pt	=	Price of tender under consideration
Pmax	=	Price of highest acceptable tender



4. POINTS AWARDED FOR SPECIFIC GOALS

4.1. In terms of Regulation 4(2); 5(2); 6(2) and 7(2) of the Preferential Procurement Regulations, preference points must be awarded for specific goals stated in the tender. For the purposes of this tender the tenderer will be allocated points based on the goals stated in table 1 below as may be supported by proof/ documentation stated in the conditions of this tender:

4.2. In cases where organs of state intend to use Regulation 3(2) of the Regulations, which states that, if it is unclear whether the 80/20 or 90/10 preference point system applies, an organ of state must, in the tender documents, stipulate in the case of—

(a) an invitation for tender for income-generating contracts, that either the 80/20 or 90/10 preference point system will apply and that the highest acceptable tender will be used to determine the applicable preference point system; or

(b) any other invitation for tender, that either the 80/20 or 90/10 preference point system will apply and that the lowest acceptable tender will be used to determine the applicable preference point system,

then the organ of state must indicate the points allocated for specific goals for both the 90/10 and 80/20 preference point system.

Table 1: Specific goals for the tender and points claimed are indicated per the table below.
(Note to organs of state: Where either the 90/10 or 80/20 preference point system is applicable, corresponding points must also be indicated as such.
***Note to tenderers: The tenderer must indicate how they claim points for each preference point system.*)**

The specific goals allocated points in terms of this tender		Number of points allocated (80/20 system) (To be completed by the organ of state)	Number of points claimed (80/20 system) (To be completed by the tenderer)
Historically Disadvantaged Individual: -			
	(a) 100% black ownership	4	
	(b) 51% to 99% black ownership	2	
	(c) Less than 51% black ownership	0	
Black women ownership: -			
	(a) 100% black women ownership	6	
	(b) 30% to 99% black women ownership	4	
	(c) Less than 30% black women ownership	0	
Youth ownership: -			
	(a) 100% black youth ownership	4	
	(b) 30% to 99% black youth ownership	2	
	(c) Less than 30% black youth ownership	0	
People with disability:			
	(a) 20% or more disabled people ownership	2	
	(b) Less than 20% disabled people ownership	0	
Locality:			
	(a) Within Eastern Cape	4	
	(b) Outside Eastern Cape	0	

DECLARATION WITH REGARD TO COMPANY/FIRM

4.3. Name of company/firm…….

4.4. Company registration number: ……..

4.5. TYPE OF COMPANY/ FIRM

- ϒ Partnership/Joint Venture / Consortium
- ϒ One-person business/sole propriety
- ϒ Close corporation
- ϒ Public Company
- ϒ Personal Liability Company
- ϒ (Pty) Limited
- ϒ non-profit Company
- ϒ State Owned Company

[TICK APPLICABLE BOX]

4.6. I, the undersigned, who is duly authorised to do so on behalf of the company/firm, certify that the points claimed, based on the specific goals as advised in the tender, qualifies the company/ firm for the preference(s) shown and I acknowledge that:

i) The information furnished is true and correct;
ii) The preference points claimed are in accordance with the General Conditions as indicated in paragraph 1 of this form;
iii) In the event of a contract being awarded because of points claimed as shown in paragraphs 1.4 and 4.2, the contractor may be required to furnish documentary proof to the satisfaction of the organ of state that the claims are correct;
iv) If the specific goals have been claimed or obtained on a fraudulent basis or any of the conditions of contract have not been fulfilled, the organ of state may, in addition to any other remedy it may have –

(a) disqualify the person from the tendering process;
(b) recover costs, losses or damages it has incurred or suffered because of that person's conduct;
(c) cancel the contract and claim any damages which it has suffered because of having to make less favourable arrangements due to such cancellation;
(d) recommend that the tenderer or contractor, its shareholders and directors, or only the shareholders and directors who acted on a fraudulent basis, be restricted from obtaining business from any organ of state for a period not exceeding 10 years, after the *audi alteram partem* (hear the other side) rule has been applied; and
(e) forward the matter for criminal prosecution, if deemed necessary.

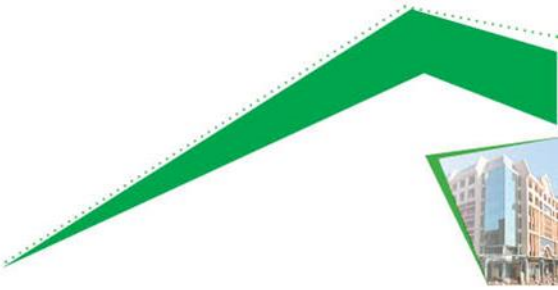
SIGNATURE(S) OF TENDERER(S)…….

SURNAME AND NAME: …….

DATE: ……

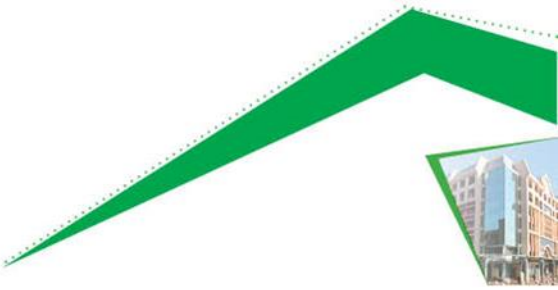
ADDRESS: ……

……



PROOF OF REGISTRATION ON THE NATIONAL TREASURY CENTRAL SUPPLIER DATABASE (CSD REPORT)

(ATTACH HERE)



PROTECTION OF PERSONAL INFORMATION: CONSENT (POPIA)

The introduction of The Protection of Personal Information Act (POPIA) ensures the regulation of personal information through its entire life cycle of collection, transfer, storing and deletion.
As part of its business activities, the Department of Public Works and Infrastructure obtains and requires access to personal data from a wide range of internal and external parties, including without limitation bidders who respond to requests for proposals that are published by the Department of Public Works and Infrastructure from time to time. The Department of Public Works and Infrastructure confirms that it shall process the information disclosed by Bidders for the purpose of evaluating and subsequently awarding/appointing a successful Bidder.

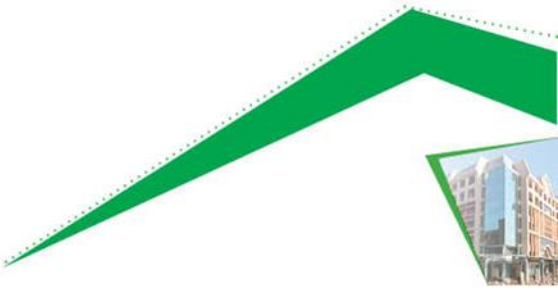
The Department of Public Works and Infrastructure hereby states that it does not and will never modify, amend, or alter any personal information submitted to it by a Bidder. Not unless directed to do so by an order of court, the Department of Public Works and Infrastructure does not disclose or permit the disclosure of any personal information to any Third Party without the prior written consent of the owner of the information.

Similarly, Bidders will from time-to-time access and be seized with information of a personal nature pertaining to the Department of Public Works and Infrastructure. Some of the information may because of legislative compliances be available in the public domain, whilst some is uniquely provided to bidders in pursuit of procurement or other business-related activities. In this regard, the Department of Public Works and Infrastructure requires that Bidders which receive or have access to its personal information, process any such information in a manner compliant with the requirements of the POPIA.

AGREEMENT

1. The Department of Public Works and Infrastructure and the Bidder (the Parties) agree and undertake that upon obtaining and
   having access to personal information relating to either of them, they shall always ensure
   that:
   a) They process the information only for the express purpose for which it was obtained.
   b) Information is provided only to designated and authorized personnel who require the personal information to carry out the Parties' respective obligations in terms of the Procurement processes.
   c) They will introduce and implement all reasonable measures ensure the protection of all personal information from unauthorized access and/or use.
   d) They have taken appropriate measures to safeguard the security, integrity, and authenticity of all personal information in its possession or under its control.
   e) The Parties agree that if personal information will be processed for any other purpose other than the one for which the accessing of the information was intended, explicit written consent will be obtained prior to the execution of such reason.
   f) The Parties shall carry out regular assessments to identify all reasonably foreseeable internal and external risks to the interception of personal information in its possession or under its control and shall implement and maintain appropriate controls in mitigation of such risks.

2. The Parties agree that they will promptly return or destroy any personal data in their possession or control which belongs to the other Party once it no longer serves the purpose for which it was collected, subject to any legal retention requirements. The information will be destroyed in such a manner that it cannot be reconstructed to its original form, linking it to any individual or organization.



3. Bidder's Obligations

a) The Bidder is required to notify the Information Officer of Department of Public Works and Infrastructure, in writing as soon as possible after it becomes aware of or suspects any loss, unauthorized access or unlawful use of any of the Department of Public Works and Infrastructure's personal information.
b) The Bidder shall, at its own cost, promptly and without delay take all necessary steps to mitigate the extent of the loss or compromise of personal data.
c) The Bidder shall be required to provide the Department of Public Works and Infrastructure with details of the persons affected by the compromise and the nature and extent of the compromise, including details of the identity (if known) of the unauthorized person who may have accessed or acquired the personal data.
d) The Bidder undertakes to co-operate with any investigation relating to security breach which is carried out by or on behalf of Department of Public Works and Infrastructure.

On behalf of the Bidder:

…….. ……
Signature Date

…… ……
Position Name of the Bidder

On behalf of the Client:

…….. ……
Signature Date

…….. ……
Position Name of Client Representative

A

RECORD OF ADDENDA TO BID DOCUMENTS

PROJECT TITLE	**PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT**
SCMU NUMBER	**SCMU5-26/27-0007SB**

I / We confirm that the following communications received from the Department of Public Works and Infrastructure before the submission of this tender offer, amending the tender documents, have been considered in this bid offer: (Attach additional pages if more space is required)

Item	Date	Title or Details	No. of Pages
1			
2			
3			
4			
5			
6			

Attach additional pages if more space is required.

Signed ..... Date .....

Name ..... Position .....

Tenderer .....

B

RESOLUTION FOR SIGNATORY

CERTIFICATE OF AUTHORITY FOR SIGNATORY

Signatory for companies shall confirm their authority hereto by attaching a duly signed and dated copy of the relevant resolution of the board of directors to this form or on company letter head.

An example is given below:

"By resolution of the board of directors passed at a meeting held on _____

Mr./Ms._____, whose signature appears below, has been duly authorized to

sign all documents in connection with the tender for Contract No. _____

and any Contract which may arise there from on behalf of (Block Capitals) ____

_____

_____

SIGNED ON BEHALF OF THE COMPANY: _____

IN HIS/HER CAPACITY AS: _____

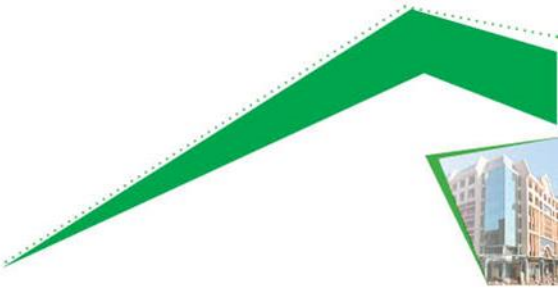
DATE:_____

SIGNATURE OF SIGNATORY: _____

WITNESSES:

DIRECTOR (NAMES)		SIGNATURE	
DIRECTOR (NAMES)		SIGNATURE	
DIRECTOR (NAMES)		SIGNATURE	
DIRECTOR (NAMES)		SIGNATURE	
DIRECTOR (NAMES)		SIGNATURE	
DIRECTOR (NAMES)		SIGNATURE	

If you cannot complete this form, attach a separate sheet (in a company letter head, project specific and signed by all directors):



C

CERTIFICATE OF AUTHORITY FOR JOINT VENTURES

This Returnable Schedule is to be completed by joint ventures.

We, the undersigned, are submitting this tender offer in Joint Venture and hereby authorize Mr./Ms. . . . ., authorized signatory of the company . . . . , acting in the capacity of lead partner, to sign all documents in connection with the tender offer and any contract resulting from it on our behalf.

PROJECT TITLE	**PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT**
SCMU NUMBER	**SCMU5-26/27-0007SB**

NAME OF FIRM	ADDRESS	DULY AUTHORISED SIGNATORY
Lead partner: …… .		Signature. . ……. . . . . . Name …….. Designation……
…… .		Signature. . ……. . . . . . Name …….. Designation……
…… .		Signature. . ……. . . . . . Name …….. Designation……
…… .		Signature. . ……. . . . . . Name …….. Designation……

D

CAPACITY OF THE BIDDER

PROJECT TITLE	**PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT**
SCMU NUMBER	**SCMU5-26/27-0007SB**

WORK CAPACITY: (The Bidder is requested to furnish the following capacity particulars and to attach additional pages if more space is required. Failure to furnish the particulars may result in the Bid being disregarded.)

Employees: (Employees to be ,or are, employed for this project)

Quantity / No. of Resources	**Full name(s) and Surname (Credentials should be the same as the ones appearing in the registration document)**	**Professional Registration No.**	**Date of Employment**

The undersigned, who warrants that she/ he is duly authorised to do so on behalf of the enterprise, confirms that the content of this schedule that presented by the tenderer are within my personal knowledge and are to the best of my knowledge both true and correct.

Signed:	……	**Date**	……
Name:	……	**Position**	……

Enterprise Name:

……

E

RELEVANT PROJECT EXPERIENCE – COMPLETED PROJECTS THREE OF WHICH IN THE LAST FIVE (05) YEARS

The description of each project must include the following information:

1. Essential introductory information:
   - 1.1. Name of project.
   - 1.2. Name of client.
   - 1.3. Contact details of client.
   - 1.4. Contact details (including telephone numbers and email addresses) of currently contactable references.
   - 1.5. The period during which the project was performed, and also, if this is different, the period during which the tenderer's team members were contracted.
   - 1.6. Cost of work and/or contract value (making it clear in broad terms what this cost/value purchased, and to what extent (if any) this cost/value was part of a larger project budget or programme budget).

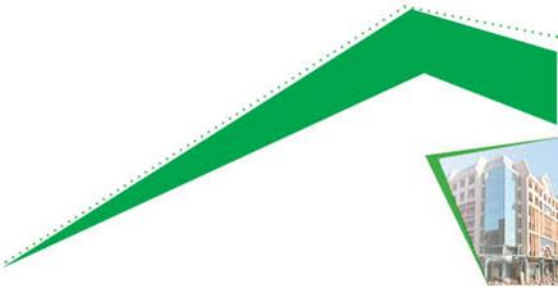
NO.	NAME OF PROJECT.	NAME OF CLIENT.	CONTACT DETAILS OF CLIENT.	PROJECT VALUE	DATE COMPLETED
1					
2					
3					
4					

The undersigned, who warrants that she/ he is duly authorised to do so on behalf of the enterprise, confirms that the content of this schedule that presented by the tenderer are within my personal knowledge and are to the best of my knowledge both true and correct.

Signed ---------- Date ----------

Name ---------- Position ----------

Enterprise name ----------



F

RELEVANT PROJECT EXPERIENCE – CURRENT PROJECTS

The description of each project must include the following information:

1. Essential introductory information:
   - 1.1. Name of project.
   - 1.2. Name of client.
   - 1.3. Contact details of client.
   - 1.4. Contact details (including telephone numbers and email addresses) of currently contactable references.
   - 1.5. The period during which the project was performed, and also, if this is different, the period during which the tenderer's team members were contracted.
   - 1.6. Cost of works and/or contract value (making it clear in broad terms what this cost/value purchased, and to what extent (if any) this cost/value was part of a larger project budget or program budget).

NO.		NAME OF PROJECT.	NAME OF CLIENT.	CONTACT DETAILS OF CLIENT.	PROJECT VALUE	STAGE OF PROJECT
1						
2						
3						
4						

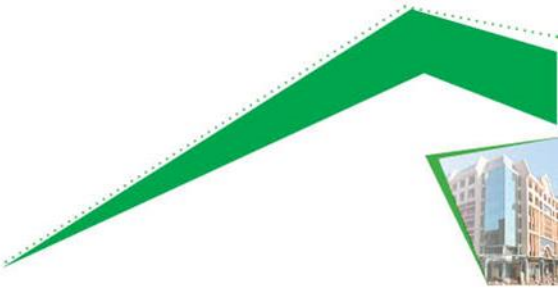
Attach a separate page to address this issue if there are more projects (the above table is just for reference purposes).

The undersigned, who warrants that she/ he is duly authorised to do so on behalf of the enterprise, confirms that the content of this schedule that presented by the tenderer are within my personal knowledge and are to the best of my knowledge both true and correct.

Signed ---------- Date ----------

Name ---------- Position ----------

Enterprise name



G

OTHER OFFERS SUBMITTED AT TIME OF THIS TENDER FOR WHICH RESULTS ARE PENDING

(Any other client's tender must also be included)

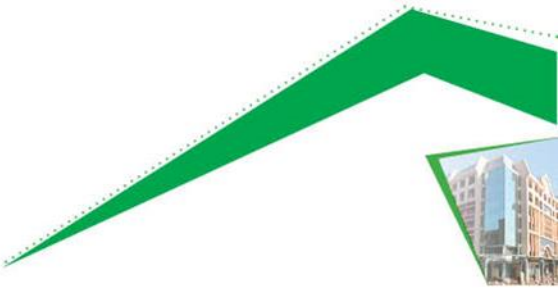
BID NO. / PROJECT NUMBER	PROJECT NAME	CLIENT NAME & CONTACT NO.	VALUE TENDERED IN RANDS	DATE SUBMITTED	CONTACT DETAILS (CLIENT)
1					
2					
3					
4					
5					

Attach a separate page to address this issue if there are more projects (the above table is just for reference purposes).

Signed ---------- Date ----------

Name ---------- Position ----------

Enterprise name ----------



H

SCHEDULE OF TENDERER'S LITIGATION HISTORY

The tenderer shall list below details of any litigation with which the tenderer (including its directors, shareholders or other senior members in previous companies) has been involved with any organ of state or state department within the last ten years. The details must include the year, the litigating parties, the subject matter of the dispute, the value of any award or estimated award if the litigation is current and in whose favour the award, if any, was made.

NO.	NAME OF CLIENT.	OTHER LITIGATING PARTY	BRIEF DETAILS OF DISPUTE	PROJECT VALUE	DATE RESOLVED OR STATUS OF LITIGATION
1					
2					
3					
4					

Attach a separate page to address this issue if there are more projects (the above table is just for reference purposes).

Signed ---------- Date ----------

Name ---------- Position ----------

Tenderer name ----------

I

Project Reference Forms

Project title:	**PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT**
Project Number:	**SCMU5-26/27-0007SB**

NOTE: This returnable document must be completed by the person who was the Project Manager and or Principal Consultant on a project of similar value and complexity that was completed successfully by the tenderer.

I, _____ (name and surname) of
_____ (company name) declare
that I was the Project Manager and or Principal Consultant on the following building construction project successfully executed by _____ (name of tenderer):
Project name: _____
Project location: _____
Construction period: _____ Completion date: _____
Contract value: _____

A. Please evaluate the performance of the Tenderer on the abovementioned project, on which you were the principal agent, by inserting "Yes" in the relevant box below:

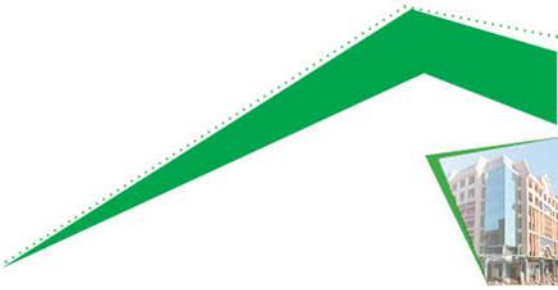
Key Performance Indicators	Very Poor 1	Poor 2	Fair 3	Good 4	Excellent 5	Total
1. Project performance						
2. Quality of Services						
3. Resources: Personnel						
4. Time management / programming						
5. Financial management / Project budget management/ cash flow, etc.						
TOTAL						

B. Would you consider / recommend this tenderer again:

YES	NO

C. Any other comments: _____

_____



D. My contact details are:

Telephone: _____ Cellphone: _____ Fax: _____

E-mail: _____

Thus signed at _____ on this _____ day of _____ 2024

_____

COMPANY STAMP

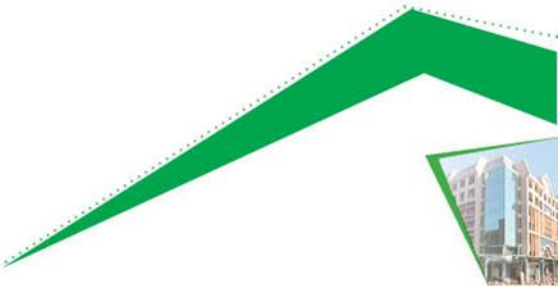
Signature of principal agent/Client

NOTE:

If reference cannot be verified due to the inability to get hold of the referee or failure on his/her part to respond to a written request to do so, that reference will be disregarded. It is the responsibility of the tenderer to put referees who are reachable and are willing to be contacted.

_____
Name of Tenderer

_____ _____
Signature of Tenderer



PART C1 AGREEMENTS AND CONTRACT DATA

C1.1 Form of Offer and Acceptance
C1.2 Contract Data for CIDB Standard Professional Services Contract
C1.3 CIDB Adjudicator's Agreement

C1.1- Form of Offer and Acceptance

Annex C

(normative)

FORM OF OFFER AND ACCEPTANCE

Project title	**PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT**
SCMU number	**SCMU5-26/27-0007SB**

OFFER

The employer, identified in the acceptance signature block, has solicited offers to enter into a contract for the **PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT**

The tenderer, identified in the offer signature block, has examined the documents listed in the tender data and addenda thereto as listed in the returnable schedules, and by submitting this offer has accepted the conditions of tender.

By the representative of the tenderer, deemed to be duly authorized, signing this part of this form of offer and acceptance, the tenderer offers to perform all of the obligations and liabilities of the contractor under the contract including compliance with all its terms and conditions according to their true intent and meaning for an amount to be determined in accordance with the conditions of contract identified in the contract data.

THE OFFERED TOTAL OF THE PRICES + DISRBUSEMENTS + INCLUSIVE OF VALUE ADDED TAX IS:

……..Rand (in words);

R ……..(in figures) (or other suitable wording)

This offer may be accepted by the employer by signing the acceptance part of this form of offer and acceptance and returning one copy of this document to the tenderer before the end of the period of validity stated in the tender data, whereupon the tenderer becomes the party named as the contractor in the conditions of contract identified in the contract data.

Signature(s)_____

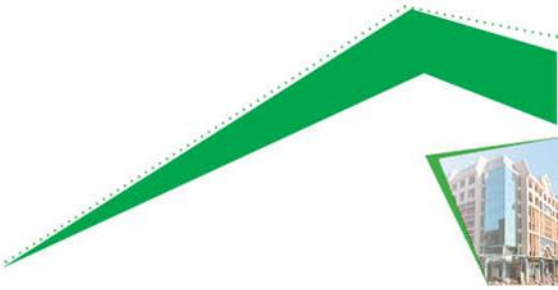
Tender's Name(s)_____

Authorized Person
(Names_____
_____

Address of the
Tenderer:_____
_____

Witnesses (Signatures):
1._____Date:_____

2._____Date:_____



ACCEPTANCE

By signing this part of this form of offer and acceptance, the employer identified below accepts the tenderer's offer. In consideration thereof, the employer shall pay the contractor the amount due in accordance with the conditions of contract identified in the contract data. Acceptance of the tenderer's offer shall form an agreement between the employer and the tenderer upon the terms and conditions contained in this agreement and in the contract that is the subject of this agreement.

The terms of the contract, are contained in

Part C1 Agreements and contract data, (which includes this agreement)
Part C2 Pricing data
Part C3 Scope of work.
Part C4 Site information and drawings and documents or parts thereof, which may be incorporated by reference into the above listed Parts.

Deviations from and amendments to the documents listed in the tender data and any addenda thereto as listed in the returnable schedules as well as any changes to the terms of the offer agreed by the tenderer and the employer during this process of offer and acceptance, are contained in the schedule of deviations attached to and forming part of this form of offer and acceptance. No amendments to or deviations from said documents are valid unless contained in this schedule.

The tenderer shall within 3 weeks after receiving a completed copy of this agreement, including the schedule of deviations (if any), contact the employer's agent (whose details are given in the contract data) to arrange the delivery of any securities, bonds, guarantees, proof of insurance and any other documentation to be provided in terms of the conditions of contract identified in the contract data. Failure to fulfil any of these obligations in accordance with those terms shall constitute a repudiation of this agreement.

Notwithstanding anything contained herein, this agreement comes into effect on the date when the tenderer receives one fully completed original copy of this document, including the schedule of deviations (if any). Unless the tenderer (now contractor) within five working days of the date of such receipt notifies the employer in writing of any reason why he cannot accept the contents of this agreement, this agreement shall constitute a binding contract between the parties.

Signature ……
Name ……
Capacity ……
for the Employer ……
(Name and address of organization)
Name and signature
of witness …….. Date ……..

Schedule of Deviations

1 Subject _____
Details

_____

2 Subject _____
Details

By the duly authorised representatives signing this agreement, the employer and the tenderer agree to and accept the foregoing schedule of deviations as the only deviations from and amendments to the documents listed in the tender data and addenda thereto as listed in the tender schedules, as well as any confirmation, clarification or changes to the terms of the offer agreed by the tenderer and the employer during this process of offer and acceptance.

It is expressly agreed that no other matter whether in writing, oral communication or implied during the period between the issue of the tender/ quotation documents and the receipt by the tenderer of a completed signed copy of this Agreement shall have any meaning or effect in the contract between the parties arising from this agreement.

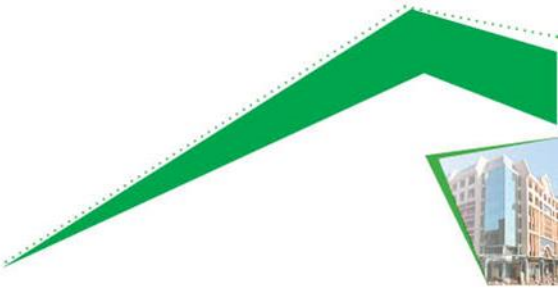
C1.2 Contract Data for CIDB Standard Professional Services Contract

The Standard Professional Services Contract (Third edition, September, 2009) published by the Construction Industry Development Board, are applicable to this contract.

Copies of these conditions of contract may be obtained from the Construction Industry Development Board's website *www.cidb.org.za*

Part 1: Contract Data completed by the Employer

Clause	
	The Employer is the Department of Public Works and Infrastructure- Eastern Cape Province
	The Authorized and designated representative of the Employer is: Mr. K Manjiya Tel No.**: 069 019 6100** Email Address: Khaka.Manjiya@ecdpw.gov.za
1	**The Project is FOR THE PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT**
2	The period of performance will be determined from the approved project scope and plans
3.1	The location of the performance of the contract is on 96 Francis Street, Somerset East, SBM, Eastern Cape.
3.2	The Service Provider may not release public or media statements or publish material related to the services or project under circumstances.
4	The Service Provider is required to provide personnel in accordance with the provisions of clause 7.2 and to complete the Personnel Schedule
6	The Service Provider is to commence the performance of the Services within 5 Days of date that the Contract becomes effective
7	The period of suspension under clause 8.5 is not to exceed 3 months
8	Copyright of documents prepared for this project shall be vested with the Employer
9	The alternative dispute settlement will be by Adjudication
10	The Prospective bidder will be required to provide professional indemnity insurance within 21 days after receiving letter of appointment.
11	The provisions of 13.6 do not apply to the Contract
12	The interest will be prime interest rate of the Employer's bank at the time that the amount is due.
13	Contract duration: 22 Months inclusive of 16 Month Construction Period

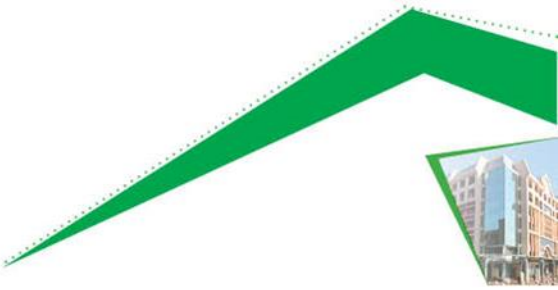


Part 2: Contract Data provided by the Service Provider……..	
1	The Professional Service Provider is:…… Address:…… …… …… Telephone:…… Facsimile:……
5.3	The Authorised and designated representative of the Service Provider is: Name: …… The Address for recipient of communication is: Address…….. …… …… Telephone:…… Facsimile:……..

PART C1.3 - DISPUTE RESOLUTION MECHANISM

C1.3.1 CIDB Adjudicator's Agreement

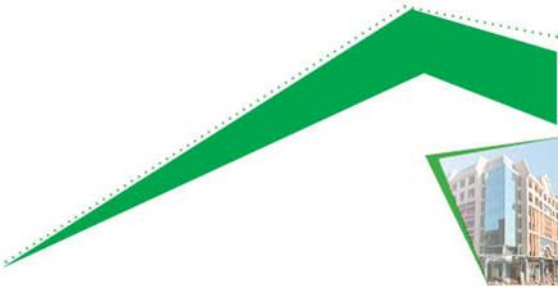
This agreement is made on the . . . . . day of . . . . . between:. . . . . .



Contract Data

1	The Adjudicator shall be paid at the hourly rate of R. . . . . in respect of all time spent upon, or in connection with, the adjudication including time spent travelling.
2	The Adjudicator shall be reimbursed in respect of all disbursements properly made including, but not restricted to: (a) Printing, reproduction and purchase of documents, drawings, maps, records and photographs. (b) Telegrams, telex, faxes, and telephone calls. (c) Postage and similar delivery charges. (d) Travelling, hotel expenses and other similar disbursements. (e) Room charges. (f) Charges for legal or technical advice obtained in accordance with the Procedure.
3	The Adjudicator shall be paid an appointment fee of R . . . . . This fee shall become payable in equal amounts by each Party within ….. days of the appointment of the Adjudicator, subject to an Invoice being provided. This fee will be deducted from the final statement of any sums which shall become payable under item 1 and/or item 2 of the Contract Data. If the final statement is less than the appointment fee the balance shall be refunded to the Parties.
4	The Adjudicator is/is not* currently registered for VAT.
5	Where the Adjudicator is registered for VAT it shall be charged additionally in accordance with the rates current at the date of invoice.
6	All payments, other than the appointment fee (item 3) shall become due 30 days after receipt of invoice, thereafter interest shall be payable at 5% per annum above the Reserve Bank base rate for every day the amount remains outstanding.

* Delete as necessary



PART C2: PRICING DATA

C2.1 Pricing Instructions
C2.2 Pricing Schedule

C2.1 Pricing Instructions

Pricing Instructions mean the criteria as set out below, read together with all Parts of the contract document, which it will be deemed in the contract that the Tenderer has taken into account when developing his prices.

1. The short descriptions given in the Pricing Schedule below are brief descriptions used to identify the activities for which prices are required. Detailed descriptions of the activities to be priced are provided in the Scope of Work, with reference to Government Gazette **Professional Fees Guideline issued in terms of the Architectural Profession Act, 2000 (Act No. 44 of 2000), Board Notices 885 of 2026** as gazetted in Government Gazette No. 54218, 27th February 2026, for persons registered in terms of the South African council for Architectural Professionals (SACAP), where applicable.

2. While it is entirely at the Tenderer's discretion as regards pricing the Activity Schedule below, the Professional Fees Guideline issued in terms of the Architectural Profession Act, 2000 (Act No. 44 of 2000), Board Notices 885 of are useful documents that will give Tenderers some idea of industry norms against which they may compare their rates, sums, percentage fees and/or prices as applicable.

3. The rates, sums, percentage fees (as applicable) used by a Tenderer to determine his offer shall not exceed the rates stipulated by the Guideline Scope of Services and Tariff of Fees for Persons Registered in terms of the South African Council for Architectural Profession (SACAP)and Department of Public Works: Rates for Reimbursable Expenses document, respectively.

4. For the purpose of the Activity Schedule, the following words shall have the meanings hereby assigned to them:

- Unit: The unit of measurement for each item of work.
- Quantity: The number of units of work for each item.
- Rate: The agreed payment per unit of measurement.
- Amount: The product of the quantity and the agreed rate for an item.
- Sum: An agreed lump sum payment amount for an item, the extent of which is described in the Scope of Work, but the quantity of work which is not measured in any units.
- Percentage Fee: The agreed fee for a service, the extent of which is described in the Scope of Work, expressed as a percentage of a construction contract value or part thereof.

5. A rate, sum, percentage fee and/or price as applicable, is to be entered against each item in the Activity Schedule. An item against which no price is entered will be considered to be covered by the other prices or rates in the Activity Schedule.

6. The rates, sums, percentage fees and prices in the Activity Schedule are to be fully inclusive prices for the work described under the several items. Such prices and rates are to cover all costs and expenses that may be required in and for the execution of the work described in accordance with the provisions of the Scope of Work, and shall cover the cost of all general risks, liabilities, and obligations set forth or implied in the Contract Data, as well as overhead charges and profit. Where time-based rates are quoted, such shall include for all payments to administrative, clerical and secretarial staff used to support professional and technical staff.

7. Where quantities are given in the Pricing Schedule, these are provisional and do not necessarily represent the actual amount of work to be done. The quantities of work accepted and certified for payment will be used for determining payments due and not the quantities given in the Activity Schedule. In respect of time-based services, the allocation of staff must be agreed with the employer before such services are rendered.

8. Tenderers will note that the prices for some items are developed from a quoted fee expressed as a percentage of an estimated contract value (construction cost) which, for tendering purposes, is given. Tenderers are required to insert their quoted percentage fee in the spaces provided. Where prices have been developed from a quoted discounted fee, the final amount due to the Service Provider will be adjusted according to the relevant final construction contract value based on the percentage fee quoted.

9. The following table shall be used for proportioning the tendered basic fee for normal services (Item No. 1) over the various stages.

Work Stages	Architectural
1	2%
2	15%
3	20%
4	30%

5	30%
6	3%

10. All other rates, sums, percentage fees or prices (as applicable) tendered in the Activity Schedule shall be final and binding and shall **not** be subject to any variation throughout the period of the contract.

11. Provision for time-based services which fall beyond the scope of normal services as described in the Scope of Work has been made in the Activity Schedule. This provision is for services provided on instruction from the Employer and will be deducted in whole or part if not required. The estimated period of involvement of each category of person must be agreed with the Employer before any work in this regard commences. The individuals involved in this work must be stated in either the schedule of Key Personnel (Schedule F) or Personnel Schedule (Schedule N) whose curriculum vitae must be appended to the respective schedules. Changes to Schedule F and N shall be dealt with in terms of Clause 7.1 and 7.2 of the Contract.

12. The categories of persons in respect of time-based fee rates for the following services shall be:

- Guideline Professional Fees in terms of Section 34 (2) of the Architectural Profession

  Professional Fees Guideline issued in terms of the Architectural Profession Act, 2000 (Act No. 44 of 2000),

  Board Notices 885 of 2026 as gazetted in Government Gazette No. 54218, 27th February 2026

- A higher category person undertaking lower category work will be reimbursed, in respect of time-based fees, at the lower category rate.

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13. All charges in respect of attendance at meetings and the provision of secretarial services shall be deemed to be included in the tendered basic fee for normal services (Item No.1 of the Activity Schedule).

14. While the Employer has every intention to complete the full scope of works, the Employer reserves the right to reduce or increase the scope of works according to the dictates of the budget, or to terminate this contract, without adjustment to the agreed rates, sums or fees and without payment of any penalty or surcharge in this regard. The Service Provider shall however be entitled to pro-rata payment for all services carried out in terms of any adjustment to the Scope of Work or, in the case of termination, remuneration and/or reimbursement as described in Clause 8.4.4 of the Standard Professional Services Contract.

15. The per kilometre rate for the reimbursement of travel expenses shall be as per the Department of Transport: Rates for Reimbursable expenses available on http://www.transport.gov.za. It shall be noted that, in respect of the aforementioned, the Employer shall only be liable for travel expenses with respect to vehicles of engine capacity up to 1950cc only, for diesel and petrol fuelled engines respectively. If the Service Provider elects to use a vehicle with engine capacity exceeding 1950cc, the Employer shall ***not*** be liable for any additional cost resulting from a higher rate per kilometre associated with an engine capacity larger than 1950cc and the rate per kilometre to be paid shall be deemed to be that of a 1950cc engine.

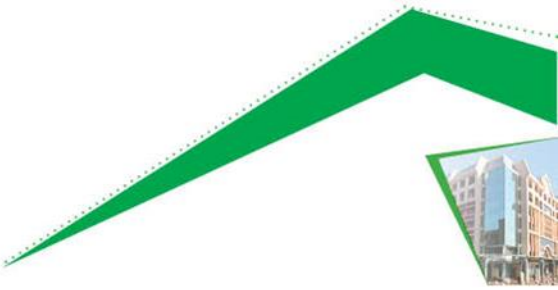
16. Distances for travelling to site for progress and technical meetings shall be remunerated on a kilometre basis from the premises PSP's place of practice to the location of the site on a round-trip basis.

17. Rates for typing, printing, duplicating and drawings shall be as per the Department of Public Works: Rates for Reimbursable expenses available on http://www.publicworks.gov.za

18. Tenderers are to note that only those recoverable expenses listed in the Activity Schedule will be reimbursed to the Service Provider. No reimbursement of costs for subsistence, typing, printing/copying (other than reports, tender documents, manuals, drawings and related schedules), communications, computer hardware and/or software will be made, and these costs will be deemed to be included in rates, sums, percentages fees and prices for normal and additional services rendered.

19. Items for printing/copying shall be for specified contract documents, tender documents, reports, manuals, drawings along with related schedules and shall exclude general correspondence, progress reports, minutes of meetings etc. which shall be deemed to be included in the professional fees as they are necessary and integral to the execution of the Service Providers' work as per the Standard Services for which it is employed. Payment will only be made for copies of reports and drawings submitted to the employer and/or issued to parties who bear an interest in the execution of the project, as specified or requested by the Employer, and all drafts shall be for the Service Provider's account.

20. Where provisional sums are provided in respect of additional services, these amounts may be omitted in part or full should the additional work not be required and/or at the discretion of the Employer.



C2.2 Pricing Schedule

The quotation from the service provider shall be deemed to be full compensation for the work as specified. The offer includes the supply of all materials, labour, supervision, tools, equipment, services and deliverables necessary to carry out and complete the required management of Architectural services contract.

Further, the offer includes all transport, advertising, accommodation, safety, SACAP Act related costs, security, quality control, overheads, profit, risks, escalation and incidental costs incurred for the successful completion of the work.

The rates and prices submitted on the attached schedule are all-inclusive, and the Bidder will be required to submit a separate and detailed break-down schedule for each of the components as part of their Bid submission.

BIDDERS TO NOT ALTER ANY FIGURES GIVEN IN THIS SCHEDULE. IF ONE WISHES TO OFFER ALTERNATIVES, THE ALTERNATIVES MUST BE GIVEN IN A SEPARATE SUBMISSION.

Architectural Services

- Guideline Professional Fees in terms of Section 34 (2) of the Architectural Profession Act, 2000 Act 44 of 2000, Professional Fees Guideline issued in terms of the Architectural Profession Act, 2000 (Act No. 44 of 2000), Board Notices 885 of 2026 as gazetted in Government Gazette No. 54218, 27th February 2026
- **Project Cost Based Fees**
- Project assumed to be **medium complexity** and fees to be calculated as such
- **NOTE:** Project Period is 22 Months inclusive of 16 Month Construction Period.

TABLE 1: Professional Fees

Fee Description		Amount
Estimated Value of the Work		R 13 100 000.00 **(A)**
Primary Fee		R
Secondary Fee		R
Sub – Total **(B)**		
Alterations to Surcharge *[The fee for work that includes alterations is based on the total project cost and increased for that portion of the work comprising or affected by alterations by 30% (130% of the fee).]* Value of estimated work R3 100 000.00 **(C)**		(Applicable) Estimated value of alterations work R 3 100 000.00 Formula: C/AxBx30% R
Additions Surcharge *[The fee for portion of work associated with the parts of the addition interfacing with the existing building. The fee for this latter work is increased by 30% (130% of the fee).] Should it be necessary that the architectural professional survey, assess/prepare documentation for the existing building, the cost of this shall be charged on a time basis* Value of estimated work R10 000.00 **(D)**		(Applicable) Estimated value of additional work R 10 00 000.00 Formula: D/AxBx30% R
Discount/Addition Offered – OPTIONAL – **NOT MANDATORY**	**%**	**R**
Professional Fee (Primary Fee + Secondary Fee + Any other applicable surcharge and/or Discount, where applicable)		**R**

(Professional Fee to be carried to Final Summary)

TABLE 2: Apportionment of Fees between work stages- Standard Services

Service Category	% Fee	Amount (Calculated Fee)
Stage 1: Inception	2	
Stage 2: Concept and Viability	15	
Stage 3: Design development (also termed Detail Design)	20	
Stage 4: Documentation and Procurement.	30	
Stage 5: Contract Administration and Inspection	30	
Stage 6: Close-Out	3	
Total	**100**	

TABLE 3: TIME RELATED COSTS (Rate Only)

Resource	Rate
Professional Architect	
Professional Architectural Technologist	
Candidate Architect	
Candidate Architectural Technologist	
Student Architect	

DISBURSEMENTS

NB: Disbursements in the form of printing and travelling costs shall be paid according to the latest disbursement rates as published on the National Department of Public Works website.

TABLE 4 - Printing, Copies and Binding

	Pages	Rate	Amount
Typing of master/original on A4	300		
Duplication A4 on white paper in colour	300		
A1 Drawing Duplication	50		
A0 Drawing Duplication	50		
Total			

(Total to be carried to Disbursements Summary- Table 7)

TRAVELLING & SUBSISTENCE EXPENSES

All Traveling Expenses are to be priced according to the Gazetted Government Tariffs. The Department will pay the tariffs as published by the Department of Transport without adding any surcharge to the published rates. The rates include fuel, maintenance, capital, insurance and depreciation.

TABLE 5 – Travelling Expenses

*Distance to be calculated from 55 Albany Road (DPWI office), Gqeberha Central to **96 Francis Street, Somerset East, Blue Crane Route Local Municipality, Sarah Baartman District, Eastern Cape.**

Purpose	Number of meetings	Vehicle	Rate	Distance in Km's	Amount
Design meetings	4				
Site Hand-over meeting	1				
Progress Meetings	17				
Inspections	16				
Technical Meetings	16				
Practical Completion	1				
Final Completion	1				
Total					

(Total to be carried to Disbursements Summary- Table 7)

TABLE 6: Subsistence & Other Expenses

Description	Rate	No.	Amount
Accommodation			
Subsistence Allowances			
Special daily allowances			
Total			

(Total to be carried to Disbursements Summary- Table 7)

TABLE 7: SUMMARY OF DISBURSEMENTS

PRINTING, COPIES AND BINDING *(Table 4 total)*	
TRAVELLING EXPENSES *(Table 5 total)*	
SUBSISTENCE & OTHER EXPENSES *(Table 6 total)*	
Total *(To be carried to Final Summary)*	

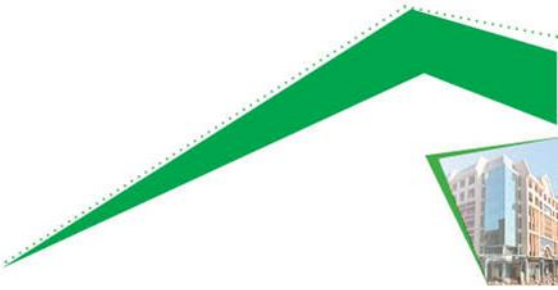
FINAL SUMMARY

Project title	**PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT**
SCMU number	**SCMU5-26/27-0007SB**

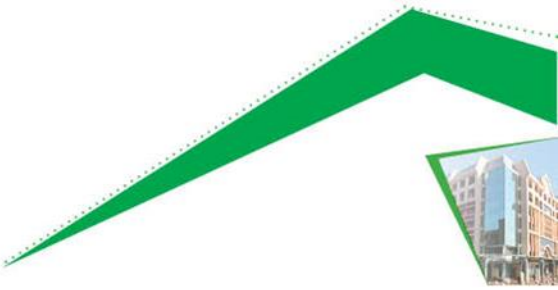
SUMMARY OF SCHEDULE OF QUANTITIES			
Section	Description	From Page	Amount
1	Architectural services Professional Fee (Total from Table 1)	46	
Sub Total 1			R
Add: Disbursements (Total from Table 7)			R
Sub Total 2			R
Add: Construction Health and Safety **Add: Geotechnical Investigation** **Add: Time Related Costs**			**R 436 851.22** **R 50 000.00** **R 150 000.00**
Sub Total 3			R
Add: 15% Value Added Tax to **Sub Total 3**			R
TOTAL CARRIED FORWARD TO FORM OFFER AND ACCEPTANCE			**R**

I, the undersigned, do hereby declare that the above is a properly priced Activity Schedule forming part of this Contract Document upon which my/our quotation for **Tender No. SCMU5-26/27-0007SB** has been based.

SIGNED ON BEHALF OF THE TENDERER: ……



PART C3: SCOPE OF WORK



CONTRACT NUMBER SCMU5-26/27-0007SB

Abbreviations

DPWI:	Department of Public Works and Infrastructure
QS:	Quantity Surveyor
STR/CIVL:	Structural and Civil
ELEC/MECH:	Electrical and Mechanical
ARCHI:	Architect

PROJECT TITLE AND DESCRIPTION OF WORK:

PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT

The scope of work shall be based on the project requirements and the latest South African Council for the Architectural Profession BOARD NOTICE 885 OF 2026: Guideline Professional Fees in terms of Section 34 (2) of the Architectural Profession Act, 2000 Act 44 of 2000) as published in Government Gazette, Professional Fees Guideline issued in terms of the Architectural Profession Act, 2000 (Act No. 44 of 2000), Board Notices 885 of 2026 as gazetted in Government Gazette No. 54218, 27th February 2026. The following exceptions to the above shall apply:

a) The project under consideration entails repairs and renovations to an existing house facility, and construction of additional office spaces and related external works (parking and fencing) situated in KwaNojoli formerly known as Somerset East.
b) The proposed repairs and renovations and additions are intended to address face numerous challenges, primarily due to the building's age and lack of adequate maintenance and office space.
c) Project is undertaken in very stringent timelines and appointed service providers needs to have the capacity to perform within such bounds and deliver as per the client's requirements.

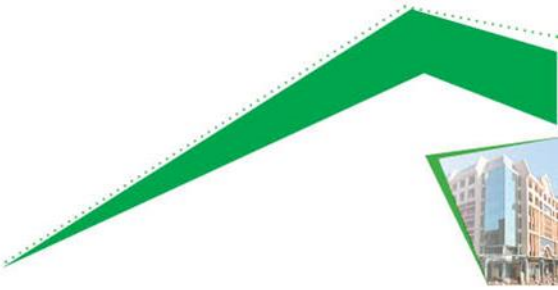
d) All financial Administration Services including giving assistance to the quantity surveyor shall form part of Normal Services

e) This bid is for combined Architectural consultancy services
   - ❖ The following services in addition to Architectural services will be outsourced:
     - Professional Civil and Structural Engineering services

The appointed Architect will be required to work with the above-mentioned professionals and provide inputs required by any of them as part of the professional team. The Tender documentation for the contractor services will be done by the Quantity Surveyor.

The appointed consultant will be required to provide the services of a professionally registered Architect for the duration of the contract (22 Months inclusive of 16 Month Construction Period). This period could be less. The Architect should be someone with experience in checking, approving, keeping record and making decisions on Architectural works.

The appointed Architect will be responsible for all Architectural works related to the building.



General

The professional Service provider will execute the required services in a professional manner, complying with the appropriate designs and specifications. They will comply with all relevant legislation pertaining to the built environment in general.

Service	Scope of work
Architectural consulting services	The **Architectural services** shall satisfy the stated objectives of the Employer in relation to the construction works identified in the description of the services. The consultancy shall, as a minimum, in order to satisfy these objectives, provide the standard services as set out in the **Professional Fees Guideline issued in terms of the Architectural Profession Act, 2000 (Act No. 44 of 2000), Board Notices 885 of 2026** as gazetted in Government Gazette No. 54218, 27th February 2026 including items shown in the schedule of prices

- *Where partial services are required, replace "standard services" with partial services" and indicate the stages which are required in the description of the services*

SCOPE OF PROFESSIONAL SERVICES REQUIRED

1. ENDORSEMENTS AND REGISTRATION

Consultants to be registered with the South African Council for the Architectural Profession (SACAP).

2. PROFESSIONAL FEES

Disbursements and time related fees to be settled as per periodic National DPW "Reimbursable Rates" latest document

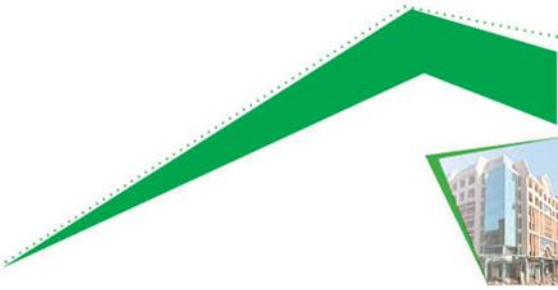
3. DUTIES

In addition to the duties as described in the latest Board Notice Board Notice 885 of 2026: Guideline Professional Fees in terms of Section 34 (2) of the Architectural Profession Act, 2000 Act 44 of 2000 as published in Government Gazette Professional Fees Guideline issued in terms of the Architectural Profession Act, 2000 (Act No. 44 of 2000), Board Notices 885 of 2026 as gazetted in Government Gazette No. 54218, 27th February 2026 with applied exceptions, the consulting Architects shall also perform the following duties:

3.1 GENERAL

a) Ensure all activities comply with all relevant government Acts and Norms
b) Assist the principal consultant in coordinating the design team and design management processes to an optimum
c) Timeous and proper reporting via the principal consultant/DPWI Project Manager
d) Coordination with local authorities according to the relevant local by-laws throughout the entire project stages
e) Ascertain full involvement of local stakeholders (communities, organisations, etc.) at all times as related to Architectural matters
f) Seek the necessary ratifications at all times from all stakeholders
g) Ensure quality control of physical elements and intangible processes

Over and above these duties the Architect is to take cognizance of the skill shortage in the Department and province in the context of professional staff. In that light, the Professional Service Provider is expected to play a role in contributing to skills development training during execution of his duties and the duration of the contract.



PART C4: SITE INFORMATION

C4. SITE INFORMATION

Project title	**PROVISION OF PROFESSIONAL ARCHITECTURAL SERVICES (PSP) FOR REHABILITATION, RENOVATION AND REFURBISHMENT TO SOMERSET EAST SERVICE OFFICE IN SARAH BAARTMAN DISTRICT**
SCMU number	**SCMU5-26/27-0007SB**

The site is located in **in 96 Francis Street Somerset East Blue Crane Municipality, Sarah Baartman District, Eastern Cape.**

